SHIONOGI INC. v. LUPIN LIMITED et al

Plaintiff:	SHIONOGI INC.
Defendant:	LUPIN LIMITED and LUPIN PHARMACEUTICALS, INC.
Case Number:	2:2026cv06218
Filed:	May 28, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Jennifer Choe-Groves (CIT)
Referring Judge:	Leda D Wettre
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
July 9, 2026	**Filing 9** WAIVER OF SERVICE Returned Executed by SHIONOGI INC.. LUPIN PHARMACEUTICALS, INC. waiver sent on 7/2/2026, answer due 8/31/2026. (DENI, WILLIAM)
July 9, 2026	**Filing 8** WAIVER OF SERVICE Returned Executed by SHIONOGI INC.. LUPIN LIMITED waiver sent on 7/2/2026, answer due 9/30/2026. (DENI, WILLIAM)
July 7, 2026	**Filing 7** NOTICE of Appearance by JAMES S. RICHTER on behalf of LUPIN LIMITED, LUPIN PHARMACEUTICALS, INC. (RICHTER, JAMES)
June 24, 2026	**Filing 6** Letter from William P. Deni, Jr. to the Honorable Leda Dunn Wettre, U.S.M.J. re: status report. (DENI, WILLIAM)
June 2, 2026	**Filing 5** NOTICE of Appearance by STEPHEN R. DONAT on behalf of SHIONOGI INC. (DONAT, STEPHEN)
May 29, 2026	**Filing 4** SUMMONS ISSUED as to LUPIN LIMITED, LUPIN PHARMACEUTICALS, INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (lag,)
May 29,	**Filing 3** AO120 Patent Form filed. (Attachments: #1 Complaint) (lag,)

Date Filed	Document Text
2026	
May 28, 2026	**Filing 2** Corporate Disclosure Statement by SHIONOGI INC.. (DENI, WILLIAM)
May 28, 2026	**Filing 1** COMPLAINT against LUPIN LIMITED, LUPIN PHARMACEUTICALS, INC. (Filing and Admin fee $ 405 receipt number ANJDC-17473287) , Related Case Selected, filed by SHIONOGI INC.. (Attachments: #1 Exhibit A, #2 Civil Cover Sheet, #3 Certification Pursuant to Local Civil Rule 11.2 & 40.1)(DENI, WILLIAM)
May 28, 2026	Case Assigned to Judge Jennifer Choe-Groves (CIT) and Magistrate Judge Leda D. Wettre. (mfr)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Shionogi Inc. (Delaware)
  - Defendant: Lupin Limited (India) and Lupin Pharmaceuticals, Inc. (a corporation with offices in Florida and New Jersey)
  - Plaintiff's Counsel: FBT Gibbons LLP; Finnegan, Henderson, Farabow, Garrett & Dunner, LLP
- Case Identification: 2:26-cv-06218, D.N.J., 05/28/2026
- Venue Allegations: Venue is alleged to be proper in the District of New Jersey because Defendant Lupin Limited is a foreign corporation, and Defendant Lupin Pharmaceuticals has a regular and established place of business in the district, has committed acts of infringement in the district, and has previously consented to venue in the district in other litigation.
- Core Dispute: Plaintiff alleges that Defendants' submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of the drug RADICAVA ORS® constitutes an act of infringement of a patent directed to methods of administering an oral formulation of edaravone.
- Technical Context: The technology relates to pharmaceutical treatment for Amyotrophic Lateral Sclerosis (ALS), a fatal neurodegenerative disease, by providing a specific oral administration regimen for the drug edaravone that manages food-effect variability on drug absorption.
- Key Procedural History: This is a Hatch-Waxman action triggered by Defendants' filing of ANDA No. 219415 with a Paragraph IV certification, asserting non-infringement of the patent-in-suit. The drug at issue, RADICAVA ORS®, was granted seven years of Orphan Drug Exclusivity by the FDA. The plaintiff, Shionogi Inc., recently acquired the RADICAVA ORS® business and associated patents from Tanabe Pharma Corporation. The complaint notes numerous other pending infringement actions in the same district related to the same drug.

Case Timeline

Date	Event
2020-11-12	'469 Patent Priority Date
2022-05-12	FDA grants approval for RADICAVA ORS® (NDA No. 215446)

2022-09-01	Lupin Pharmaceuticals submits FOIA request for RADICAVA ORS® data
2024-03-28	FDA grants Orphan Drug Exclusivity for RADICAVA ORS®
2025-12-22	Shionogi publicly announces agreement to acquire RADICAVA ORS® business
2026-03-10	U.S. Patent No. 12,569,469 issues
2026-04-01	Shionogi completes acquisition of RADICAVA ORS® assets
2026-04-13	Lupin sends Paragraph IV Notice Letter regarding ANDA No. 219415
2026-05-28	Complaint for Patent Infringement filed
2029-05-12	Orphan Drug Exclusivity for RADICAVA ORS® expires

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,569,469 - "Pharmaceutical composition for oral administration of edaravone and method of administering same"

- Patent Identification: U.S. Patent No. 12,569,469 ("the '469 patent"), *"Pharmaceutical composition for oral administration of edaravone and method of administering same,"* issued March 10, 2026 Compl. ¶38 '469 Patent, front page

The Invention Explained

- Problem Addressed: The active ingredient edaravone is a treatment for the neurodegenerative disease ALS but was previously available only as an injectable agent Compl. ¶11 '469 Patent, col. 1:65-col. 2:2 While an oral formulation is more convenient, the

inventors found that consumption of meals prior to administration significantly and variably impacts the drug's pharmacokinetics, potentially reducing its efficacy '469 Patent, col. 15:45-53

- The Patented Solution: The '469 patent discloses a method for administering an oral edaravone composition that avoids the negative food effect by implementing specific time intervals between meal consumption and drug administration '469 Patent, abstract The invention specifies distinct waiting periods depending on whether the patient consumed a high-fat, standard, or light meal, thereby ensuring consistent drug absorption and bioavailability similar to administration in a fasted state '469 Patent, col. 17:3-13 '469 Patent, cl. 1
- Technical Importance: This dosing regimen enables the use of a convenient oral suspension for ALS patients, reducing the significant burden associated with intravenous infusions for patients and caregivers Compl. ¶¶11-12

Key Claims at a Glance

- The complaint asserts infringement of one or more claims of the '469 patent, including at least Independent Claim 1 Compl. ¶47
- The essential elements of Independent Claim 1, a method of treating ALS, include:
    - Orally or intragastrically administering a liquid pharmaceutical composition comprising edaravone.
    - Observing a "first time interval" between the consumption of a meal and the administration of the drug.
    - The specific "first time interval" is defined based on the meal type: 8 hours for a high-fat meal, 4 hours for a low-fat meal, or 2 hours for a caloric supplement.
    - The administration timing is performed "such that" the resulting maximum drug concentration (Cmax) decreases by less than 20% and/or the total drug exposure (AUC) decreases by less than 10% compared to administration in a fasted state.
    - Observing a "second time interval" of at least 1 hour from the administration of the drug to the consumption of the next meal.
      '469 Patent, cl. 1

III. The Accused Instrumentality

Product Identification

The accused instrumentality is Defendants' proposed generic edaravone oral suspension, for which Defendants submitted ANDA No. 219415 to the FDA Compl. ¶¶19, 39

Functionality and Market Context

The complaint alleges that the accused product is a proposed generic copy of Plaintiff's RADICAVA ORS® product Compl. ¶42 It is an oral suspension of edaravone with a proposed dose concentration of 105 mg/5 mL Compl. ¶40 The complaint asserts that RADICAVA ORS® is a major contribution to patient care for ALS because it provides a clinically superior oral administration option compared to the previously available intravenous formulation Compl. ¶12 Defendants seek approval to market their generic version prior to the expiration of the '469 patent Compl. ¶42

IV. Analysis of Infringement Allegations

No probative visual evidence provided in complaint.

The complaint does not contain a detailed claim chart. The infringement theory is based on the act of filing the ANDA under 35 U.S.C. § 271(e)(2) and inducement of infringement under 35 U.S.C. § 271(b) Compl. ¶¶48-49 The allegation is that the proposed labeling for Defendants' generic product will instruct physicians and patients to administer the drug according to a regimen that meets the limitations of the asserted claims Compl. ¶48

'469 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating amyotrophic lateral sclerosis, comprising: orally or intragastrically administering... a liquid pharmaceutical composition comprising edaravone...	The filing of ANDA No. 219415 seeks approval for a proposed edaravone oral suspension, and the proposed labeling is alleged to instruct its administration to treat ALS.	¶40; ¶42; ¶48	col. 45:4-8
...with a first time	The proposed labeling	¶48	col. 45:9-25

interval from a consumption of a meal... wherein the first time interval for the consumption of a high-fat meal... is 8 hours... the first time interval for the consumption of a low-fat meal... is 4 hours... or the first time interval for... a caloric supplement... is 2 hours...	for the generic product is alleged to instruct, encourage, and/or promote administration according to the claimed time intervals between various meal types and drug intake.		
...such that a decrease in Cmax is less than 20%... and/or that a decrease in AUC is less than 10% with respect to... fasting...	The complaint alleges that administration according to the proposed label performs substantially the same function in substantially the same way to obtain the same result as the patented method.	¶47	col. 45:26-33
...and the second time interval from the administration of the liquid pharmaceutical composition to the consumption of the next	The proposed labeling for the generic product is alleged to instruct, encourage, and/or promote waiting at least one hour after	¶48	col. 45:34-39

	administration before
meal... is 1 hour.	consuming the next
	meal.

- Identified Points of Contention:
    - Scope Questions: A central dispute may be whether the instructions in Defendants' proposed labeling will direct or encourage users to perform each and every step of the claimed method. The infringement analysis will question if following the label *necessarily* results in practicing the claimed time intervals for the specific meal types defined in the patent.
    - Technical Questions: The claim includes a functional limitation regarding the resulting pharmacokinetic profile (Cmax and AUC). A point of contention may be whether Defendants' specific formulation, even when administered according to the label instructions, actually achieves this claimed pharmacokinetic outcome.

V. Key Claim Terms for Construction

- The Term: "a high-fat meal," "a low-fat meal," "a caloric supplement"
    - Context and Importance: These terms define the conditions that trigger the specific administration timing requirements of Claim 1. The precise scope of these definitions is critical to determining what patient actions, as instructed by the accused product's label, constitute infringement.
    - Intrinsic Evidence for Interpretation:
        - Evidence for a Broader Interpretation: The specification uses the term "for example" when introducing the meal classifications, which may suggest the definitions are illustrative rather than exhaustive '469 Patent, col. 17:3-6
        - Evidence for a Narrower Interpretation: Claim 1 itself provides explicit quantitative definitions for each meal type (e.g., "a high-fat meal in a range of 800 to 1000 calories with 50% fat") '469 Patent, cl. 1 The specification provides further detailed examples and criteria that align with these quantitative limits, which a party could argue confines the terms to these specific ranges '469 Patent, col. 18:40-63
- The Term: "such that a decrease in Cmax is less than 20%... and/or that a decrease in AUC is less than 10%"
    - Context and Importance: This functional, result-oriented language is a crucial limitation. To prove infringement, the plaintiff must show not only that the administration steps are performed, but also that this specific pharmacokinetic result

is achieved. Practitioners may focus on this term as a potential basis for both non-infringement and invalidity arguments.

- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: The patent specification includes extensive experimental data in tables and figures demonstrating that administration according to the claimed time intervals yields this pharmacokinetic result '469 Patent, Tables 2-4 '469 Patent, FIG. 1 A party may argue that this data shows the result is an inherent property of performing the claimed steps.
    - Evidence for a Narrower Interpretation: A party could argue that this limitation renders the claim indefinite under 35 U.S.C. § 112 because a person of ordinary skill in the art cannot, without undue experimentation, readily determine whether a particular act of administration meets the claimed pharmacokinetic profile. The variability shown in the patent's own data could be cited to support this argument '469 Patent, FIG. 1

VI. Other Allegations

- Indirect Infringement: The complaint alleges active inducement of infringement under 35 U.S.C. § 271(b) Compl. ¶48 The factual basis is the allegation that Defendants' proposed product labeling will instruct, encourage, and promote administration of the edaravone suspension by physicians and patients in a manner that directly infringes at least Claim 1 of the '469 patent Compl. ¶48 The complaint further alleges that Defendants possess the specific intent to induce this infringement Compl. ¶52
- Willful Infringement: The complaint alleges that Defendants were aware of the '469 patent prior to amending their ANDA to include a Paragraph IV certification Compl. ¶52 It further alleges that Defendants' submission of the ANDA was made "despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Lupin or so obvious that it should have been known," which tracks the legal standard for willful infringement Compl. ¶52

VII. Analyst's Conclusion: Key Questions for the Case

- A core issue will be one of induced infringement: Can Shionogi prove that the language on Lupin's proposed product label, which has not yet been made public, will be specific enough to demonstrate an affirmative intent to encourage or instruct physicians and patients to practice the patented method? The outcome will likely depend on whether the label's

directions are mandatory or merely suggestive, and how closely they track the patent's specific meal-and-timing limitations.

- A second key issue will be claim scope and validity: The infringement and validity of the asserted method claim will turn on the construction of its functional pharmacokinetic limitation ("such that a decrease in Cmax..."). The case will raise the evidentiary question of whether Lupin's proposed formulation achieves this result, and the legal question of whether this type of functional language renders the claim indefinite and therefore invalid.
- A final question relates to the statutory act of infringement: As an ANDA case, the primary act of infringement is the filing of the application itself. A central battleground will be the comparison of the scope of the patent claims to the product that Lupin's ANDA seeks to market, as will be defined by its proposed labeling and bioequivalence data.

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UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

SHIONOGI INC.,

Plantiff,

v. Civil Action No. 26-6218

LUPIN LIMITED and LUPIN PHARMACEUTICALS, INC.,

Defendants,

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiff Shionogi Inc. ("Shionogi" or "Plaintiff"), by its undersigned attorneys, brings this action for patent infringement against Defendants Lupin Limited and Lupin Pharmaceuticals, Inc. ("Lupin Pharmaceuticals") (collectively, "Lupin" or "Defendants"), and hereby alleges, on knowledge as to its own actions, and on information and belief as to all other matters, as follows:

NATURE OF THE CASE

1. This is an action for infringement by Defendants, under the Patent Laws of the United States, 35 U.S.C. §§ 1 *et seq.*, of Shionogi's United States Patent No. 12,569,469 ("the '469 patent") (the

"Patent-in-Suit"), under the United States Patent Laws, 35 U.S.C. §§ 100 *et seq.*, the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. §§ 301 *et seq.*, and as well as the Declaratory Judgment Act, 28 U.S.C. §§ 2201-2202.

2. This action arises from Defendants' submission to the United States Food and Drug Administration ("FDA") of Abbreviated New Drug Application ("ANDA") No. 219415, seeking approval to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its pharmaceutical products before the expiration of the Patent-in-Suit, which is listed in the FDA's publication, *Approved Drug Products with Therapeutic Equivalence Evaluations*, (the FDA's "Orange Book") for RADICAVA ORS®.

3. There are several related patent infringement actions, involving the same drug RADICAVA ORS® and certain of the same patents, pending in this District. See *In re Radicava ORS*, Case No. 2:25-cv-03326 (D.N.J.) (filed Apr. 25, 2025); *Tanabe Pharma Corp. v. Sandoz Inc.*, Case No. 2:25-cv-16664 (D.N.J) (filed Oct. 15, 2025); *Tanabe Pharma Corp. v. Cipla USA, Inc., et al.*, Case No. 2:25-cv-16677 (D.N.J.) (filed Oct. 16, 2025); *Tanabe Pharma Corp. v. Apotex Inc., et al.*, Case No. 2:25-cv-16679 (D.N.J.) (filed Oct. 16, 2025); *Tanabe Pharma Corp. v. Lupin Ltd., et al.*, Case No. 2:25-cv-16680 (D.N.J.) (filed Oct. 16, 2025); *Mitsubishi Tanabe Pharma Corp. v. Zydus Pharmaceuticals (USA) Inc. et al.*, Case No. 2:25-cv-18032 (D.N.J.) (filed Nov. 29, 2025); *Tanabe Pharma Corp. v. Azurity Pharmaceuticals, Inc. et al.*, Case No. 2:26-cv-00559 (D.N.J.) (filed Jan. 16, 2026); *Tanabe Pharma Corp. v. Cipla USA, Inc., et al.*, Case No. 2:26-cv-01734 (D.N.J.) (filed Feb. 20, 2025); *Shionogi Inc. v. Lupin Ltd., et al.*, Case No. 2:26-cv-03893 (D.N.J.) (filed Apr. 13, 2026).

4. As publicly announced on December 22, 2025, Shionogi entered into an agreement to acquire the global RADICAVA ORS® business from Tanabe Pharma Corporation ("TPC") (formerly known as Mitsubishi Tanabe Pharma Corporation ("MTPC")). As of April 1, 2026, Shionogi acquired ownership and control of the RADICAVA ORS® assets in the United States, including the NDA for RADICAVA ORS® and its Orange Book-listed patents.

5. Pursuant to this transfer of ownership, TPC intends to file motions pursuant to Federal Rule of Civil Procedure 25(c) to address the transfer of interest and to substitute Shionogi as the appropriate Plaintiff.

AMYOTROPHIC LATERAL SCLEROSIS

6. Amyotrophic lateral sclerosis ("ALS"), also known as Lou Gehrig's disease, is a devastating and fatal neurodegenerative disease that causes motor neurons – nerve cells in the brain and spinal cord – to progressively decay and die. When this happens, the brain's ability to control muscle movement is progressively lost as the patient loses the ability to speak, eat, move and eventually breathe. The underlying causes of ALS are not known. Once diagnosed with ALS patients, on average, die within 3 to 5 years from when symptoms first appear, although their quality of life deteriorates substantially throughout their few remaining years. However, in patients diagnosed much later, the survival window is even shorter – often within months. There is no cure for ALS.

7. The care of an ALS patient is burdensome, requiring a team of medical professionals, specialized equipment, and constant attention of a caregiver. Caregivers are often relatives who have forgone their occupations in order to care for the daily activities of the ALS patient. The demands of caregiving for an ALS patient take a toll on the health and finances of their caregivers as well. Of the neurodegenerative diseases, ALS is considered one of the most expensive and burdensome,

imposing significant direct and indirect costs on the ALS patient, the caregivers, medical professionals, and the healthcare industry.

8. Since 1980, although over one hundred (100+) clinical trials with various compounds have been conducted and published, only four active pharmaceutical ingredients ("APIs") have been approved by the FDA for the treatment of ALS. RELYVRIO®, a drug using one of those APIs, was subsequently withdrawn from the market due to a failed clinical study. RADICAVA ORS® is one of the few drug formulations containing one of the remaining three approved APIs for the treatment of ALS.

RADICAVA ORS®

9. Shionogi is the owner of NDA No. 215446. Through its approval of NDA No. 215446 on May 12, 2022, the FDA granted approval of the first oral suspension formulation containing the edaravone API at a dose concentration of 105 mg/mL, available in the United States and marketed and sold under the trade name RADICAVA ORS®.

10. TPC, the prior owner of the RADICAVA ORS® business and assets and developer of RADICAVA ORS®, invested hundreds of millions of dollars in research and development demonstrating the efficacy and safety of RADICAVA ORS® for the treatment for ALS.

11. Although there is no cure for ALS, RADICAVA ORS® helps slow the progression (*i.e.*, loss of physical function) of the disease in ALS patients by approximately thirty-three percent (33%) as compared to a placebo over the same six-month period. Unlike the prior RADICAVA® intravenous ("IV") formulation, RADICAVA ORS® can be administered by the patient or caregivers at the convenience of a home setting, either orally or via a feeding tube, and in only a few minutes. There is no need to transport the patient to a healthcare facility for IV injection of RADICAVA®.

12. On March 28, 2024, the FDA granted seven years of Orphan Drug Exclusivity for RADICAVA ORS® for the treatment of ALS based upon the FDA's assessment that RADICAVA ORS® constitutes a major contribution to patient care for people living with ALS because it provides patients with the clinically superior option of an oral suspension route of administration, reducing the burden patients faced with IV administration of the previously approved RADICAVA® formulation.

13. Pursuant to 21 U.S.C. § 360cc(a)(2) relating to Orphan Drug Exclusivity, the FDA may not approve another application "for the same drug for the same disease or condition for a person who is not the holder of such approved application or of such license until the expiration of seven years from the date of the approval of the approved application or the issuance of the license."

14. The Orphan Drug Exclusivity for RADICAVA ORS® expires on May 12, 2029.

15. The Patent-in-Suit is listed in the Approved Drug Products With Therapeutic Equivalence Evaluations ("Orange Book") in connection with NDA No. 215446 for RADICAVA ORS®.

THE PARTIES

16. Shionogi is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 400 Campus Drive, Florham Park, New Jersey 07932.

17. On information and belief, Lupin Limited is a corporation organized and existing under the laws of India, having a corporate headquarters at 3rd Floor, Kalpataru Inspire, Off. Western Expressway Highway, Santacruz (East), Mumbai 400 055, India.

18. On information and belief, Lupin Pharmaceuticals is a corporation with corporate offices located at 5801 Pelican Bay Blvd., Suite 500, Naples, Florida 34108, and manufacturing facilities located at 400 Campus Dr., Somerset, New Jersey 08873.

19. On information and belief, Lupin Limited is the holder of ANDA No. 219415, seeking FDA approval to market a generic copy of RADICAVA ORS®.

20. On information and belief, Defendant Lupin Pharmaceuticals is, directly and/or indirectly, a wholly owned subsidiary of Defendant Lupin Limited.

21. On information and belief, each of Lupin Limited and Lupin Pharmaceuticals is in the business of, *inter alia*, directly or indirectly, developing, manufacturing, marketing, distributing, selling, offering for sale, and/or importing generic versions of branded pharmaceutical products throughout the world, including the United States and the State of New Jersey, either individually or in cooperation.

22. On information and belief, Lupin Limited and Lupin Pharmaceuticals collaborate with respect to the development, regulatory approval, marketing, distribution, and/or sale of generic versions of branded pharmaceutical products in the United States, including in the State of New Jersey.

23. On information and belief, Lupin Limited and Lupin Pharmaceuticals are agents of one another and/or operate in concert as integrated units of the same corporate group.

24. On information and belief, the acts of Lupin Limited set forth in this Complaint were done with the cooperation, participation, and assistance of Lupin Pharmaceuticals.

25. On information and belief, Lupin Limited and Lupin Pharmaceuticals caused Lupin's ANDA No. 219415 to be submitted to FDA and seek FDA approval of Lupin's ANDA.

26. On information and belief, Lupin Pharmaceuticals is the U.S. agent for Lupin Limited with the FDA with respect to ANDA No. 219415.

27. On information and belief, after obtaining FDA approval of Lupin's ANDA No. 219415, Lupin Limited and Lupin Pharmaceuticals will act cooperatively to distribute, offer to sell, and sell the proposed infringing products described in Lupin's ANDA No. 219415 throughout the United States, including the State of New Jersey, consistent with their earlier actions with respect to other generic versions of branded pharmaceutical products.

28. According to the FDA FOIA Request log, available at https://www.fda.gov/media/162035/download?attachment, on September 1, 2022, Lupin Pharmaceuticals submitted Freedom of Information Act Request No. 2022-6329 to the FDA for the Summary Basis of Approval for RADICAVA ORS® (edaravone) oral suspension, 105 mg/5mL.

JURISDICTION AND VENUE

29. Shionogi restates, realleges, and incorporates by reference paragraphs 1–28 as if fully set forth herein.

30. This action arises under the Patent Laws of the United States and the Food and Drug Laws of the United States, Titles 35 and 21, United States Code.

31. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a).

32. This Court may exercise jurisdiction over Lupin because, on information and belief, Lupin is in the business of manufacturing, marketing, importing, and selling pharmaceutical drug products, including generic drug products. On information and belief, Lupin directly, or indirectly, develops, manufactures, markets, and sells generic drugs throughout the United States and in this judicial district. On information and belief, Lupin purposefully has conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of Lupin's generic products.

33. On information and belief, as described in Lupin's notification of ANDA No. 219415 and the certification under 21 U.S.C. § 355(j)(2)(A)(vii)(IV), dated April 13, 2026 ("Lupin's Notice Letter"), Lupin caused ANDA No. 219415 to be submitted to the FDA to seek FDA approval of ANDA No. 219415 prior to the expiration of the Patent-in-Suit listed in the Orange Book for RADICAVA ORS®.

34. This Court also has personal jurisdiction over Lupin because Lupin has committed, aided, abetted, and participated and/or will commit, will aid, will abet, and/or will participate in the commission of acts of patent infringement, including acts in this judicial district, which have led to foreseeable harm and injury to Shionogi in this judicial district. This Court also has personal jurisdiction over Lupin because Lupin Limited and/or Lupin Pharmaceuticals have previously consented to personal jurisdiction in this Court. See, e.g., *Takeda Pharm. U.S.A., Inc., et al. v. Lupin, Ltd., et al.*, No. 25-12574, ECF No. 22 (D.N.J. Sep. 22, 2025); *Braintree Lab'ys, Inc. v. Lupin Ltd., et al.*, No. 25-13133, ECF No. 14 (D.N.J. Aug. 25, 2025); *Jazz Pharm. Rsch. UK Ltd. f/k/a GW Rsch. Ltd. v. Apotex Inc., et al.*, No. 23-23141, ECF No. 28 (D.N.J. Mar. 20, 2024); *Novo Nordisk Inc., et al. v. Lupin Ltd.*, No. 23-4027, ECF No. 15 (D.N.J. Oct. 2, 2023); *Novo Nordisk Inc., et al. v. Lupin Ltd.*, No. 23-4031, ECF No. 16 (D.N.J. Oct. 2, 2023); *Braintree Lab'ys, Inc., et al. v. Lupin Ltd., et al.*, No. 23-2853, ECF No. 19 (D.N.J. July 25, 2023); *Bausch & Lomb Inc., et al. v. Lupin Ltd., et al.*, No. 23-2452, ECF No. 12 (D.N.J. June 30, 2023); *Bausch & Lomb Inc., et al. v. Lupin Ltd., et al.*, No. 23-2664, ECF No. 12 (D.N.J. June 30, 2023); *Merck Sharp & Dohme LLC v. Lupin Ltd., et al.*, No. 23-94, ECF No. 18 (D.N.J. Mar. 14, 2023); *Catalyst Pharm., Inc., et al. v. Lupin Ltd., et al.*, No. 23-1197, ECF No. 38 (D.N.J. May 3, 2023).

35. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Lupin Limited for reasons stated above and, *inter alia*, because Lupin Limited is a foreign corporation and may be sued in any judicial district in the United States.

36. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Lupin Pharmaceuticals for reasons stated above and, *inter alia*, because, on information and belief, Lupin Pharmaceuticals has a regular and established place of business in New Jersey and has committed acts of infringement in New Jersey. Venue is also proper in this Court because Lupin Limited and/or Lupin Pharmaceuticals have previously consented to venue in this Court. See, e.g., *Braintree Lab'ys, Inc. v. Lupin Ltd., et al.*, No. 25-13133, ECF No. 14 (D.N.J. Aug. 25, 2025); *Catalyst Pharm., Inc., et al. v. Lupin Ltd., et al.*, No. 23-1197, ECF No. 38 (D.N.J. May 3, 2023); *Aragon Pharma., Inc., et al. v. Lupin Ltd., et al.*, No. 22-2825, ECF No. 18 (D.N.J. July 18, 2022); *Sun Pharma Global FZE, et al. v. Lupin Ltd., et al.*, No 18-2213, ECF No. 12 (D.N.J. May 15, 2018); *Horizon Therapeutics, LLC v. Lupin Ltd., et al.*, No. 17-5900, ECF No. 12 (D.N.J. Sep. 29, 2017).

37. Moreover, on information and belief, this venue is proper for reasons stated above and, *inter alia*, because Lupin Limited and/or Lupin Pharmaceuticals have previously litigated patent infringement disputes in this judicial district and have affirmatively availed themselves of the jurisdiction of this

Court by filing counterclaims in this judicial district (see, e.g., *Teva Pharm. Indus. Ltd., et al. v. Lupin Ltd., et al.*, No. 07-247, ECF No. 16 (D.N.J. Mar. 2, 2007)), and by filing suit in this judicial district (see, e.g., *Lupin Ltd., et al. v. Merck, Sharp & Dohme Corp*, No. 10-683, ECF No. 1 (D.N.J. Feb. 1, 2010)).

THE PATENT-IN-SUIT

38. Shionogi owns the '469 patent, which was duly and legally issued on March 10, 2026, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of administering same." A copy of the '469 patent is attached as Exhibit A.

DEFENDANTS' ANDA

39. On information and belief, Lupin submitted to the FDA, and continues to maintain, its abbreviated ANDA No. 219415 relying upon the RADICAVA ORS® data for FDA approval.

40. On information and belief, Lupin seeks approval of ANDA No. 219415 for a proposed edaravone suspension, administered at a dose concentration of 105 mg/5 mL.

41. On information and belief, ANDA No. 219415 identifies RADICAVA ORS® as the reference listed drug ("RLD").

42. On information and belief, Lupin seeks FDA approval of ANDA No. 219415 to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its proposed edaravone suspension as a proposed generic copy of RADICAVA ORS®.

43. On information and belief, the FDA has not approved ANDA No. 219415.

44. On information and belief, Lupin sent Shionogi a letter ("Lupin's Notice Letter"), purporting to include a "Notification Pursuant to the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)(2)(B)(iv) and 21 C.F.R. § 314.95): ANDA No. 219415 and RADICAVA ORS® (edaravone)." Lupin's Notice Letter stated that Lupin had filed ANDA No. 219415, seeking approval to manufacture, use, import, offer to sell and/or sell Lupin's generic products before the expiration of the Patent-in-Suit. Although Lupin's Notice Letter purports that Lupin's proposed edaravone product will not infringe the Patent-in-Suit, Lupin's Notice Letter provides no substantive factual basis for noninfringement.

CLAIMS FOR RELIEF

COUNT 1: INFRINGEMENT OF THE '469 PATENT

45. Shionogi restates, realleges, and incorporates by reference paragraphs 1–44 as if fully set forth herein.

46. On information and belief, Lupin submitted and/or caused the submission of ANDA No. 219415 to the FDA, seeking approval of Lupin's proposed edaravone product in the United States prior to the expiration of the '469 patent.

47. On information and belief, Lupin's proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '469 patent, including at least Independent Claim 1 of the '469 patent. For example, on information and belief, differences, if any, between the features of Lupin's proposed edaravone product and the claims of the '469 patent are insubstantial, and Lupin's proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '469 patent.

48. On information and belief, Lupin has infringed one or more claims of the ’469 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Lupin’s proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the ’469 patent, thereby inducing infringement.

49. Lupin has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the ’469 patent by submitting ANDA No. 219415 with Lupin’s Notice Letter, seeking approval of Lupin’s proposed edaravone product prior to the expiration of the ’469 patent listed in the FDA Orange Book.

50. On information and belief, Lupin intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Lupin’s proposed edaravone product upon receipt of final FDA approval of ANDA No. 219415.

51. On information and belief, the importation, manufacture, offer to sell, sale, or use of Lupin’s proposed edaravone product in the United States prior to the expiration of the ’469 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the ’469 patent under 35 U.S.C. §§ 271(a), (b) and/or (c).

52. Upon information and belief, Lupin was aware of the ’469 patent prior to amending ANDA No. 219415 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Lupin’s proposed edaravone product and method of using Lupin’s proposed edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the ’469 patent and Lupin possess the specific intent to induce and encourage others to infringe that patent.” On information and belief, Lupin amended ANDA No. 219415 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Lupin or so obvious that it should have been known.

53. Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 219415 be a date that is not earlier than the expiration date of the ’469 patent or the later expiration of any patent term extension and/or patent term adjustment and any additional periods of exclusivity for the ’469 patent to which Shionogi is or becomes entitled.

54. Shionogi is entitled to a declaration that, if Lupin commercially manufactures, uses, offers for sale, or sells Lupin’s proposed edaravone product within the United States, or imports Lupin’s proposed edaravone product into the United States, or induces or contributes to such activities, Lupin will infringe one or more claims of the ’469 patent under 35 U.S.C. §§ 271(a), (b) and (c).

55. Shionogi will be irreparably harmed if Lupin is not enjoined from Lupin’s activities infringing the ’469 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole.

PRAYER FOR RELIEF

WHEREFORE, Shionogi respectfully requests the following relief:

A. A judgment that Defendants have infringed the Patent-in-Suit pursuant to 35 U.S.C. § 271(e)(2) by submitting ANDA No. 219415 to the FDA seeking approval of Defendants’ proposed edaravone product prior to the expiration of one or more claims of the Patent-in-Suit;

B. A judgment that the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Defendants' proposed edaravone product described in ANDA No. 219415 will infringe, induce, and/or contribute to the infringement of one or more claims of the Patent-in-Suit;

C. An order issued pursuant to 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 219415 be a date not earlier than the expiration date of the Patent-in-Suit, including any patent term extensions and/or patent term adjustments and any additional periods of exclusivity to which Shionogi is or becomes entitled;

D. An order preliminarily and permanently restraining and enjoining Defendants, Defendants' directors, officers, agents, attorneys, affiliates, divisions, successors, and employees, and those acting in privity or concert with Defendants, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of any drug product, or the use thereof, claimed in the Patent-in-Suit, before the expiration date of the Patent-in-Suit, including any patent term extension and/or patent term adjustment and any periods of exclusivity, including Orphan Drug Exclusivity, to which Shionogi is or becomes entitled;

E. A declaration that this is an exceptional case and an award to Shionogi of its reasonable expenses, including attorneys' fees pursuant to 35 U.S.C. § 285;

F. An award to Shionogi of costs incurred in this action; and

G. Such other and further relief as the Court may deem just and proper.

Dated: May 28, 2026
Newark, New Jersey

s/ William P. Deni, Jr.

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